CGHC010231782022 2026:CGHC:36890

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HIGH COURT OF CHHATTISGARH AT BILASPUR

WPS No. 4979 of 2022

*** -** Meena Dewangan D/o Bahoran Dewangan Aged About 42 Years R/o Ward No. 2, Dongripara, Bajrang Chowk Lormi, Tehsil Lormi, District Mungeli, Chhattisgarh.

... Petitioner

Versus

*** -** State Of Chhattisgarh Through Directorate Of Women And Child Development, Indravati Bahwan, Block-1, Second Floor, Naya Raipur, Atal Nagar, Chhattisgarh

... Respondent

For Petitioner	**:**	Mr. Kaustubh Singh Thakur, Advocate holding the brief of Mr. Sangeet Kumar Kushwaha, Advocate
For Respondent/State	**:**	Mr. Rishabh Chandra Singh Deo, Panel Lawyer

Hon'ble Shri Justice Rakesh Mohan Pandey
Order on Board

18/08/2026

1. The petitioner has filed this petition seeking the following relief(s):-

> "**10.1** That, this Hon'ble Court may kindly be please to allow this present writ petition and direct the Respondents to produce the entire records pertaining to present case for its kind perusal.
>
> **10.2** That, this Hon'ble Court may kindly issue an appropriate writ/order/direction to Answering Respondent thereby quashing the impugned subsequent appointment order dated 27.05.2022.
>
> **10.3** That, this Hon'ble Court may kindly issue an appropriate writ/order/direction to Answering Respondent to consider the petitioner for the supervisor job.
>
> **10.4** That, any other relief which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case may also be awarded in the favour of the petitioner.
>
> **10.5** That, the cost of the petition may kindly be awarded to the petitioner."

2. The facts, in brief, are that an advertisement was issued on 02.12.2021 to fill up 200 posts of Supervisor through direct recruitment and by way of limited competitive examination. There were total 14 posts kept for physically challenged persons. The petitioner, who was working on the post of Aaganbadi worker applied for post of Supervisor as Physical Handicapped (PH) candidate. The petitioner participated in the recruitment process. Result was declared on 04.05.2022 and she found her name in select list. The petitioner was called for document verification again vide letter dated 10.05.2022 and the respondents subsequently removed her name from the list of selected candidates vide order dated 27.05.2022.

3. Learned counsel appearing for the petitioner would argue that the petitioner belongs to PH category and she was meritorious, but her name was deleted from select list, without assigning sufficient reasons. It is argued that the decision taken by the respondent authorities was in violation of principles of natural justice. He would pray to quash the order dated 27.05.2022.

4. On the other hand, learned Panel Lawyer appearing for the State/respondent would oppose. He would contend that the petitioner applied for post of Supervisor against 100 posts as she was working on the post of Aaganbadi worker. He would submit that out of 100 posts, total 07 posts were reserved for physically challenged persons. He would further submit that the reservation for disabled person was made in 04 categories i.e. *(A)*- for Blindness and Low Vision*; (B)*- for Deaf and Hard of Hearing; *(C)*- for Locomotor Disability and *(D)*- Autistic Intellectual Disability. He would contend that the petitioner is suffering from Locomotor Disability and there were 02 candidates with said

disability, one Ms. Abha Bhariya who was at Serial No. 01, whereas name of the petitioner was at Serial No. 03 and therefore, name of the petitioner could not be considered. He would further submit that the petitioner has not impleaded the selected candidates as party respondent. He would submit that the petition is misconceived and deserves to be dismissed.

5. I have heard learned counsel for the parties and perused the documents.

6. Though there were 07 posts reserved for physical handicapped category against 100 vacancy. 07 posts were divided in 04 categories. The petitioner is a person suffering with Locomotor Disability and 01 post was reserved for said category. The respondents found one Abha Bhariya suitable for said post as her name was at Serial No. 1 in the merit list of that particular category, whereas name of the petitioner was at Serial No. 03. The petitioner has filed this petition after issuance of order of appointment, but failed to implead selected candidates. This petition was filed on 13.07.2022, whereas the select list was published on 27.05.2022 and said document has been placed as Annexure- P/1.

7. As the petitioner failed to implead selected candidates and further she was at Serial No. 03 in the list of persons suffering from Locomotor Disability, in my opinion, no case is made out for grant of relief. Accordingly, this petition fails and is hereby **dismissed**.

Sd/-
(Rakesh Mohan Pandey)
Judge

vatti